

ground (i), *and the trustee fairly and honestly dis- [*488] closing all the necessary particulars of the estate, and not attempting a furtive advantage to himself by means of any private information (a). The trustee will not be allowed to go on acquainting himself with the nature of the property up to the moment of sale, and then casting aside his character of trustee, turn his experience to his own account (b).

9. Instances where trustee has been allowed to purchase. —

In what cases a trustee will be at liberty to become a purchaser, may be best illustrated by a few instances.

Where the *cestui que trust* took the whole management of the sale himself, chose, or at least approved, the auctioneer, made surveys, settled the plan of sale, fixed the price, and so had a perfect knowledge of the value of the property, and then by his agent, but with his own personal consent, agreed to sell a lot which had been bought in to one of the trustees for sale acting as agent for another, Lord Eldon said, that if in any instance the rule was to be relaxed by consent of the parties, this was the case, and decreed the agreement to be specifically performed (c).

Again, a *cestui que trust* had strongly urged the purchase upon one of his trustees, who at first expressed an unwillingness, but afterwards, upon being pressed, agreed to the terms; and the sale was supported (d).

So, where a trustee for sale had endeavored in vain to dispose of the estate, and then purchased himself of the *cestui que trust*, at a fair and adequate price, and there was no imputation of fraud or concealment, Lord Northington said, "He did not like the circumstance of a trustee dealing with his *cestui que trust*, but upon the whole, he did not see any principle upon which he could set the transaction aside" (e).

(i) See *Randall v. Errington*, 10 Ves. 427.

(a) *Coles v. Trecothick*, 9 Ves. 247, per Lord Eldon; *Morse v. Royal*, 12 Ves. 373, 377, per Lord Erskine; *Gibson v. Jeyes*, 6 Ves. 277, per Lord Eldon; *Randall v. Errington*, 10 Ves.

427, per Sir W. Grant; [*Re Worssam*, 46 L. T. N. S. 584.]

(b) See *Ex parte James*, 8 Ves. 352; *Spring v. Pride*, 4 De G. J. & S. 395.

(c) *Coles v. Trecothick*, 9 Ves. 234.

(d) *Morse v. Royal*, 12 Ves. 355.

(e) *Clarke v. Swaile*, 2 Eden, 134.